

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, RAWALPINDI BENCH
JUDICIAL DEPARTMENT

ICA No.41-2014

Waqar Ali Khan Versus Board of Revenue, Punjab, Lahore etc

Sr.No.of Order/ Proceeding.	Date of Order/ Proceeding.	Order with signatures of Judge and that of parties or counsel, where necessary.
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26.01.2014 **Syed Ghulam Mustafa Kamal, Advocated for appellant.
Chaudhry Saif-ur-Rehman, AAG.**

Facts of the case, in brief are that Notification under Section 4 of the Land Acquisition Act, 1894 (“**Act**”) was issued by the District Officer (Revenue), Rawalpindi and published in the official Gazette on 16.12.2006 in which the land was proposed to be acquired for Laying High Pressure Gas Pipelines and allied installations (Adhi-Rewat Line). The respondents acquired the land of the appellant bearing Khasra No.486, 487 & 490 measuring 01 Kanal 15 Marla in Mouza Bucha, Tehsil Gujar Khan, District Rawalpindi. The acquiring agency took over the possession of appellant’s land in May 2006 and started work. The Land Acquisition Collector (“**LAC**”) awarded compensation of the acquired land to the appellant @ Rs.20,00,000/- per Kanal. The appellant received the awarded amount of his share **under protest** on 07.08.2012. Thereafter, the

appellant filed a Reference under Section 18 of the Act for enhancement of compensation on 24.09.2012 but the LAC/respondent No.6 **dismissed the Reference being time barred**, vide impugned order dated 06.08.2013.

2. Feeling aggrieved by the said order dated 06.08.2013, the appellant filed a **constitutional petition which was heard and dismissed** by the learned Single Judge of this Court vide order 13.03.2014, hence this intra court appeal.

3. We have taken into consideration arguments advanced by the learned counsel for the parties and perused the record on file.

4. It transpires from the record that the appellant has not been served with any notice of making of the award which is mandatory under the Act. For better understanding relevant Section 9(3) of the Act *ibid* is reproduced as under:

*“the collector shall also serve notice to the same effect on the occupier (if any) of such land and on all such persons known or believed to be **interested** therein, or to be entitled to act for persons so interested or reside or have agents authorized to receive service on their behalf, within the Revenue District in which the land is situate.”*

Issue of notice under Section 9(3) mandatory casting duty on Collector to serve notice on claimants, owners and interested persons and general. Notice or knowledge of owners about acquisition from any different source, held, not substitute of notice under the Act. Reference is made to Deputy Commissioner Vs Abdul Karim Moosa and others (1982 CLC 1542). In the present case, although appellant received compensation, under protest, after the award was made but there is no proof of service of notice to him which was also required under section 12(2) of the Act. For the sake of convenience, Section 12(2) is also reproduced hereunder:

“The Collector shall give immediate notice of his award to such of the persons interested as are not present personally or by their representative when the award is made.”

5. The appellant was neither present nor represented before the LAC when he made the award. On the proper analysis of proviso to subsection (2) of Section 18, we have noticed that different periods of limitation are provided for different situations i.e (i) making of award in presence of the applicant (ii) making of award in applicant's absence but applicant was served with notice (iii) making of award in applicant's

absence and no notice was served. For the last category, a longer period of limitation i.e. six months has been provided but that time is to run from the date of the Collector's award and the knowledge about the award has no relevance. In this regard, we are persuaded by a judgment of the Hon'ble Supreme Court of Pakistan reported as **Ghulam Muhammad Vs Government of West Pakistan and others** (PLD 1967 S.C.191) which holds as under:

“The fact that admittedly no notice of the filing of the award was served upon the appellant under section 12(2) of the Act, is in no way, relevant for the purpose of deciding this controversy as to the time within which the objection should be filed for, under section 18, proviso (b), it would appear that if notice is served the period of limitation is only six weeks from the date of the service of the notice but in other cases 6 months from the date of the Collector's award”.

5. In view of the above discussion, we are firmly of the view that in a case in which notice under Section 12(2) of the Act has not been served upon the **interested-person**, maximum period available to him is **six months** from the date of the Award. Therefore, the order dated 06.08.2013 of the LAC/ respondent No.6 and the

order dated 13.03.2014 passed by the learned Single Judge of this Court are not sustainable and the same are set-aside. Accordingly, this appeal is allowed with the direction to the LAC/respondent No.6, to decide afresh the application for Reference to court under Section 18 of the Act in the light of above observations.

(MUHAMMAD AMEER BHATTI)
JUDGE

(MASUD ABID NAQVI)
JUDGE

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